

the provisions of the Trustee Relief Act (*d*), needlessly commences an action, he will be allowed only the costs that would have been incurred had he taken advantage of the Trustee Relief Act (*e*).

[21. **Originating summons.** — Under the new Rules of Court, an inexpensive process has been introduced which enables either trustees, executors, or administrators, or their *cestuis que trust*, by means of an originating summons, to procure the determination *without an administration by the Court of the estate or trust*, of various questions and matters arising out of or affecting the trusts or the persons interested thereunder, or to obtain an order for the administration of the estate or trust without the delay and formalities of an action (*f*); but this form of proceeding is not applicable to a case where an executor has distributed the fund, and administration is sought on the ground that he has by mistake overlooked in the distribution some of the *cestuis que trust* (*g*).]

Under this rule, the question of the validity of a release given by legatees, without (as they alleged) having had independent advice, has been decided (*h*).

22. **Present practice.** — Under the present practice it is in many cases less expensive to determine the point in [*351] dispute in an action, or by originating *summons, than by the aid of the Trustee Relief Act, and in such cases a trustee ought not to adopt the more expensive process (*a*).

23. Under the new Rules of Court,¹ it is not obligatory on the Court to make an order for the administration of any trust, or of the estate of any deceased person, if the questions between the parties can be properly determined without administration, and the Court usually refuses to make an order for general administration, unless satisfied that it is *necessary* for the protection of the trustees or execu-

(*d*) See *post*.

(*e*) *Wells v. Malbon*, 31 Beav. 48.

[(*f*) Order 55, Rules 3 and 4, *et seq.*: As to the parties to be served, see Rule 5.]

[(*g*) *Re Warren*, W. N. 1884, p. 112.]

[(*h*) *Re Garnett*, 50 L. T. N. S.

172; 32 W. R. 474.]

[(*a*) See observations of the late M. R. in *Re Birkett*, 9 Ch. D. 581.]

(1) "Ord. 55, R. 10; as to the principles upon which the Court acts in the exercise of its discretion under this order, see *Re Wilson*, 28 Ch. D. 457."